

Podplane Software Grant and Corporate Contributor License Agreement ("Agreement")

Thank you for your interest in Podplane, an open source ecosystem owned or managed by Nadrama Pty Ltd (the "Company").

In order to clarify the intellectual property license granted with Contributions from any person or entity, the Company must have a Contributor License Agreement (CLA) on file that has been signed by each Contributor, indicating agreement to the license terms below. This license is for your protection as a Contributor as well as the protection of the Company and its users; it does not change your rights to use your own Contributions for any other purpose.

This version of the Agreement allows an entity (the "Corporation") to submit Contributions to the Company, to authorize Contributions submitted by its designated employees to the Company, and to grant copyright and patent licenses thereto.

Please complete and sign this Agreement using the signature request provided by the Company. The completed signed Agreement will be returned to the Company through that signature request. By signing this Agreement, You acknowledge that You have read this Agreement, accept and agree to its terms, and intend to be legally bound by it. The parties agree that this Agreement may be signed electronically and that an electronic signature has the same legal effect as a handwritten signature to the fullest extent permitted by applicable law.

Please read this document carefully before signing and keep a copy for your records.

Corporation name: _____

Corporation address: _____

Point of Contact: _____

E-Mail: _____

Telephone: _____

You accept and agree to the following terms and conditions for Your present and future Contributions submitted to the Company. Except for the license granted herein to the Company and recipients of software distributed by the Company, You reserve all right, title, and interest in and to Your Contributions.

1. Definitions.

"You" (or "Your") shall mean the copyright owner or legal entity authorized by the copyright owner that is making this Agreement with the Company. For legal entities, the entity making a Contribution and all other entities that control, are controlled by, or are under common control with that entity are considered to be a single Contributor. For the purposes of this definition, "control" means (i) the power, direct or indirect, to cause the direction or management of such entity, whether by contract or otherwise, or (ii) ownership of fifty percent (50%) or more of the outstanding shares, or (iii) beneficial ownership of such entity.

"Covered Projects" shall mean the Podplane open source ecosystem, including but not limited to Podplane, Nstance, Netsy, Easy OIDC, puidv7, Terraform/OpenTofu modules, Kubernetes operators, SDKs, websites, documentation, and related software owned or managed by the Company. The [Podplane CLA repository README](#) may contain an illustrative, non-exhaustive list of Covered Projects.

"Contribution" shall mean the code, documentation or other original works of authorship expressly identified in Schedule B, as well as any original work of authorship, including any modifications or additions to an existing work, that is intentionally submitted by You to the Company for inclusion in, or documentation of, any of the Covered Projects or other products owned or managed by the Company (the "Work"). For the purposes of this definition, "submitted" means any form of electronic, verbal, or written communication sent to the Company or its representatives, including but not limited to communication on electronic mailing lists, source code control systems, and issue tracking systems that are managed by, or on behalf of, the Company for the purpose of discussing and improving the Work, but excluding communication that is conspicuously marked or otherwise designated in writing by You as "Not a Contribution."

2. Grant of Copyright License. Subject to the terms and conditions of this Agreement, You hereby grant to the Company and to recipients of software distributed by the Company a perpetual, worldwide, non-exclusive, no-charge, royalty-free, irrevocable copyright license to reproduce, prepare derivative works of, publicly display, publicly perform, sublicense, and distribute Your Contributions and such derivative works.
3. Grant of Patent License. Subject to the terms and conditions of this Agreement, You hereby grant to the Company and to recipients of software distributed by the Company a perpetual, worldwide, non-exclusive, no-charge, royalty-free, irrevocable (except as stated in this section) patent license to make, have made, use, offer to sell, sell, import, and otherwise transfer the Work, where such license applies only to those patent claims licensable by You that are necessarily infringed by Your Contribution(s) alone or by combination of Your Contribution(s) with the Work to which such Contribution(s) were submitted. If any entity institutes patent litigation against You or any other entity (including a cross-claim or counterclaim in a lawsuit) alleging that your Contribution, or the Work to which you have contributed, constitutes direct or contributory patent infringement, then any patent licenses granted to that entity under this Agreement for that Contribution or Work shall terminate as of the date such litigation is filed.
4. You represent that You are legally entitled to grant the above license. You represent further that each employee of the Corporation designated on Schedule A below (or in a subsequent written modification to that Schedule) is authorized to submit Contributions on behalf of the Corporation.
5. You represent that each of Your Contributions is Your original creation (see section 7 for submissions on behalf of others).
6. You are not expected to provide support for Your Contributions, except to the extent You desire to provide support. You may provide support for free, for a fee, or not at all. Unless required by applicable law or agreed to in writing, You provide Your Contributions on an "AS IS" BASIS, WITHOUT WARRANTIES OR CONDITIONS OF ANY KIND, either express or implied, including, without limitation, any warranties or conditions of TITLE, NON-INFRINGEMENT, MERCHANTABILITY, or FITNESS FOR A PARTICULAR PURPOSE.
7. Should You wish to submit work that is not Your original creation, You may submit it to the Company separately from any Contribution, identifying the complete details of its source and of any license or other restriction (including, but not limited to, related patents, trademarks, and license agreements) of which you are personally aware, and conspicuously marking the work as "Submitted on behalf of a third-party: [named here]".
8. It is your responsibility to notify the Company when any change is required to the list of designated employees authorized to submit Contributions on behalf of the Corporation, or to the Corporation's Point of Contact with the Company.
9. This Agreement is governed by the laws of Victoria, Australia. The parties submit to the exclusive jurisdiction of the courts of Victoria, Australia and courts competent to hear appeals from those courts.

Please sign: _____

Date: _____

Name: _____

Title: _____

This is a legal contract and may contain personal information. Personal information submitted in connection with this Agreement is handled in accordance with Nadrama Pty Ltd's [Privacy Policy](#).

Schedule A

[Initial list of designated employees. NB: authorization is not tied to particular Contributions.]

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

Schedule B

[Identification of optional concurrent software grant. Would be left blank or omitted if there is no concurrent software grant.]

[describe grant here]:

